

**From:** [Michelle Franklin](#)  
**To:** [Secretary](#)  
**Cc:** [Muhammad Rana](#); [Rachel Dickon](#); [Judges](#)  
**Subject:** RE: Docket No. 19-03  
**Date:** Tuesday, October 1, 2019 7:39:25 PM  
**Attachments:** [Mr. Rana - Exhibit 1 10012019.pdf](#)  
[Mr. Rana - Exhibit 210012019.pdf](#)  
[Mr. Rana - Exhibit 310012019.pdf](#)  
[Mr. Rana - Exhibit 410012019.pdf](#)  
[Mr. Rana - Exhibit 510012019.pdf](#)  
[Mr. Rana - Exhibit 610012019.pdf](#)

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Dear Honorable Judge Erin Wirth,

The below are the relevant facts of the case.

On Feb 6, Mr. Rana and The Right move, Inc had engaged in a business transaction ( Exhibit 1 ) , acceptance was done by E-mail confirmation ( Exhibit 2 )

On April 2<sup>nd</sup> Mr. Rana had asked how many free days he has on the container, means he was aware of the free days and chargeable days. ( Exhibit 3 )

On April 5<sup>th</sup> Mr. Rana advised that the shipment is not released due to payment ( Exhibit 4) – A Friday.

On April 5<sup>th</sup> I have advised Mr. Rana I am looking into it, and that he may have to pay it directly to expedite the matter due to the weekend in the middle and that he can file a claim against the company's bond later on to retrieve his additional payment , or to get a refund directly from me once the money is available.

**On April 5<sup>th</sup> , Mr. Rana consented over the phone to pay the ocean costs directly to expedite the process** and avoid delays , and to be refunded by The Right Move / Myself later on. ( Exhibit 5 )

On April 9 – Follow up E-mail from myself to confirm the ocean was paid as agreed by the customer. ( Exhibit 5 )

On April 9 – Mr. Rana confirms by E-mail ( a formal Agreement ) that he will pay directly and that the payment will be done by April 10 , 5 days later after he consented to pay directly by phone, knowing we are losing all the free days , and that time is critical. ( exhibit 6 )

The rest was going back and forth about the amount to be refunded until Mr. Rana submitted the claim with the FMC for none relevant expenses.

Based on Above facts,

1. Mr. Rana's acceptance to pay the ocean directly had created a new agreement between the parties.
2. Mr. Rana took 5 extra days to make the payment , even though it was known free days are limited and charges will apply .
3. Mr. Rana was aware that the service he requested does not includes port fees, demurrage , storage or any local charges at destination.

4. Mr. Rana's agent failed to provide him proper service and gaudiness throughout the process in Pakistan , causing him to be forced to learn as he go.
5. At no point Mr. Rana had expressed his inability to maintain our new agreement.
6. Mr. Rana was aware of the financial difficulty that The Right Move was facing a head of time.
7. Throughout the whole process The Right Move, Inc / Myself never denied the customer of his right to be fully refunded for the duplicate ocean cost he had to pay.

As such ,

I request your honor to dismiss this claim , client is entitle to a refund of the ocean costs and we can either agree to do it directly or Mr. Rana can file a claim against the company bond.

Mr. Rana's request to any additional refund is irrelevant as none is due to the failure of Ocean payment by The Right Move, Inc / Myself, as the new agreement between the parties was that Mr. Rana will pay it directly and will be refunded and that the agreement was done in a timely manner before the free days were consumed.

All additional charges are a direct relation to the typical process in Pakistan, clearance duration, local port charges that were absolutely excluded from the agreement.

Thank you and best regards,

Michelle Franklin

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**From:** Secretary <secretary@FMC.gov>

**Sent:** Thursday, August 15, 2019 4:12 PM

**To:** Michelle Franklin <mfranklin@therightmove4u.com>

**Cc:** Muhammad Rana <muhammad.rana@rocketmail.com>; Rachel Dickon <Rdickon@fmc.gov>; Secretary <secretary@FMC.gov>

**Subject:** FW: Docket No. 19-03

Dear Ms. Franklin,

I am in receipt of your email to [Judges@fmc.gov](mailto:Judges@fmc.gov) from Tuesday, August 13, 2019. Please note that you should not send items directly to the Judge. You need to send anything about this proceeding to my office, [secretary@fmc.gov](mailto:secretary@fmc.gov). It is appropriate to cc [Judges@fmc.gov](mailto:Judges@fmc.gov). Also, all filings should also be sent for service to all other parties to the proceeding. That party is now copied on this email as well.

Your email appears to be a response to the allegations in the complaint, and will be included in the case docket accordingly.

It is true that parties in the past have found it an easier experience to obtain legal representation when involved in a proceeding before the Federal Maritime Commission. However, pursuant to 46

C.F.R. 502.22 [https://www.ecfr.gov/cgi-bin/text-idx?SID=268af0f1c5268946baa3475982c1e0c1&mc=true&node=pt46.9.502&rgn=div5#se46.9.502\\_122](https://www.ecfr.gov/cgi-bin/text-idx?SID=268af0f1c5268946baa3475982c1e0c1&mc=true&node=pt46.9.502&rgn=div5#se46.9.502_122) ,  
you could also choose to represent yourself in this proceeding.

To assist you, the Commission's rules for proceedings are detailed through the following link:  
<https://www.ecfr.gov/cgi-bin/text-idx?SID=cd82dc5a07adebb044d1f8f3eab84391&mc=true&node=pt46.9.502&rgn=div5>

You may also wish to read closely the Judge's Initial Order:  
[https://www2.fmc.gov/readingroom/docs/19-03/19-03\\_IO.pdf/](https://www2.fmc.gov/readingroom/docs/19-03/19-03_IO.pdf/)

Please let me know if you have any questions.

Thank you,

*Rachel E. Dickon*  
*Assistant Secretary*  
*Federal Maritime Commission*  
*Ph 202-523-5725*

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**From:** Judges <[Judges@FMC.gov](mailto:Judges@FMC.gov)>  
**Sent:** Tuesday, August 13, 2019 1:12 PM  
**To:** Secretary <[secretary@fmc.gov](mailto:secretary@fmc.gov)>  
**Subject:** FW: Docket No. 19-03

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**From:** Michelle Franklin <[mfranklin@therightmove4u.com](mailto:mfranklin@therightmove4u.com)>  
**Sent:** Tuesday, August 13, 2019 11:57 AM  
**To:** Judges <[Judges@FMC.gov](mailto:Judges@FMC.gov)>  
**Subject:** RE: Docket No. 19-03

Dear Erin W. Wirth ,

Your honor,

Thank you for granting me additional time to respond, and forgive me for the unprofessional language , I am not a lawyer, and not familiar with legal terms.

Should this will continue any further , I will seek legal help but at this point I wanted to try and defend my actions.

The Right Move inc, has been providing Ocean Service since 2011 .

The years 2018-2019 , business was very slow, and we engaged in commercial shipping to try and stay afloat.

Commercial clients work on different terms of payment, and we conducted business with a “big” customer who failed to pay .

As a small company that resulted in the company need to shut down, after almost 10 years .

Mr. Rana and Myself started communicating on Jan 28 , 2019.

02/04/2019 I have provided Mr. Rana a quote for door to port service with self loading Total \$2,595.00

02/05/2019 Mr. Rana accepted the terms and conditions or agreement , for door to port only service.

02/06/2019 I have provided Mr. Rana self loading instructions, including how to properly write an Inventory list so it can be declared on the BOL.

02/07/2019 I have provided Mr. Rana his Ocean vessel details and schedule .

02/14/2019 Mr. Rana paid his shipping costs.

02/15/2019 Mr. Rana Loaded the container .

03/12 /2019– I requested a proper inventory list , as it was not received yet. Advised the customer that he shipment is due to arrive on April 3<sup>rd</sup>, and In order for me to share the BOL with him, I need the proper Inventory list .

03/25/2019 – Mr. Rana still didn't provide proper details for the BOL, so I sent a reminder.

03/27/2019 – we concluded the Inventory list as Mr. Rana kept adding items to it.

03/28/2019 – Mr. Rana advised that he hired an agent to assist with the custom clearance and the process in Pakistan, and Asked to change the Bill of lading again to reflect that . **–an agent should have been involved much earlier in the process as Custom clearance in Pakistan is no joke.**

03/31/2019 – Mr. Rana started his verbal abuse and threatening because he failed to understand that changing a BOL , especially last minute is out of my hands, and take the SSL few days to process.

04/04/2019 Mr. Rana requested additional changes to the Bill of lading , and I have submitted the changes and sent him a house BOL as well to expedite the process.

04/05/2019 – I was informed that the freight was on hold, and It seems as the payment that was submitted was applied towards an old shipment that was still pending.

04/05/2019 – same day , I had advised the customer, that he should pay directly at destination , and he has two options, wait few days to be compensated by the company , or file a claim against the company bond ( I hva provided him wit the claim form , the FMC details etc to make sure he understand his opitions) . I wanted him to know we take full responsibility .

04/05/2019 – the customer understood and agreed to pay and get refunded later .

04/10/2019 Mr. Rana confirmed he paid the ocean directly.

04/15/2019 – Follow up E-mail form myself to Mr. Rana to make sure all is going well for him.

Ever Since , the customer kept asking for more money to be refunded, for all sorts of local port

fees, demurrage and storage and additional costs that are in no way related to the failure to pay the ocean in time.

He was accusing, abusive and threatening throughout the last steps of the process.

The Company failure to pay the ocean is not related in anyway with Mr. Rana local charges, port fees, and any accommodation costs in Pakistan. Process in Pakistan is difficult and long regardless, especially when everything is done last minute.

Mr. Rana needed to change the BOL several times in the last minute resulted in BOL correction fees, which I gladly took upon myself , because that's what I do , I always try to help the customers, it was never about the money for me ( this was of course before I realized the SSL applied the payment towards another shipment ) .

I have educated Mr. Rana about the process as much as I could, I stayed on top of things for him because I knew he doesn't understand the process properly , I urged him to find an agent in Pakistan to Help him, because I knew the process is long and difficult .

Even though there was a payment failure, I was with the customer , making sure it is all being resolved in a timely manner to avoid storage and demurrage etc.

There was no negligence, or fraud in anyway .

I offered to pay Mr. Rana back the ocean costs of course, as well as some of the demurrage days ( Shipment arrived on April 3, On April 5<sup>th</sup> customer agreed to pay the ocean at destination, but only paid it on April 10 resulting in additional delays)

Mr. Rana kept asking me to pay his port fees, which are excluded and would have applied regardless.

Finally Mr. Rana provided me a family member bank details to wire the money , and due to the nature of our communication at that point , I felt uncomfortable doing so.

Mr. Rana was one of the last few customers we had to finish before we chose to close the company and surrender our FMC license .

Almost 10 years of doing good, helping people, educating them and being there for them while they are going through such life changing experiences was all I ever asked for !

It was never about making money , It was about finding something I am good at and enjoy while helping people every day .

I never neglected Mr. Rana, I was there every step of the way , on weekends and nights. I failed him, by not paying the ocean , but offered several times to compensate him ( we just didn't agree on the amount )

Mr. Rana saw an opportunity to make it something that it is not, and obviously he is very smart and resourceful , but at no moment in my entire shipping carrier, I have done anything

that is not 100% dedicated and truthful !

I thank you for your time reading this, I know it is emotional rather than factual , but that's me, I think with my heart .

Of course I would appreciate any help with trying to resolve this , but I strongly feel that the customer is trying to take advantage of the situation , and I am afraid I will not agree to that .

Michelle Franklin  
646-764-9411

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**From:** Judges <[Judges@FMC.gov](mailto:Judges@FMC.gov)>  
**Sent:** Thursday, July 25, 2019 3:45 PM  
**To:** [muhammad.rana@rocketmail.com](mailto:muhammad.rana@rocketmail.com); Michelle Franklin <[mfranklin@therightmove4u.com](mailto:mfranklin@therightmove4u.com)>  
**Subject:** RE: Docket No. 19-03

Good Afternoon,

Please see attached an "Order to Show Cause," issued by the Honorable Erin M. Wirth, being served today in Docket No. 19-03. A brief statement acknowledging receipt of this document would be greatly appreciated.

Thank you,

Office of Administrative Law Judges  
Federal Maritime Commission  
800 North Capitol Street, NW  
Washington, DC 20573-0001  
Tel: 202-523-5750  
Fax: 202-566-0042  
Email: [judges@fmc.gov](mailto:judges@fmc.gov)

Exhibit 1



**The Right Move Inc.**  
ALL AROUND THE WORLD

## International Moving Service Agreement

Reference No: S220847

**The Right Move Inc**

150 Motor Parkway suite # 401

Hauppauge, NY 11788

Registration #: FMC# 023229N

**Customer**

Rep: Michelle

Phone: 855-344-5874

Fax: 631-439-6801

Email: [mfranklin@therightmove4u.com](mailto:mfranklin@therightmove4u.com)Web: <http://www.therightmove4u.com>**Moving From****Muhammad Rana**

110 Roberts Lane

Apt. #: 301

Alexandria, VA 22314

Phone: 402 477 7583

[muhammad.rana@rocketmail.com](mailto:muhammad.rana@rocketmail.com)**Moving To****Muhammad Rana**

Karachi Port Only, PAKISTAN

**Service Information**

Job No: S220847  
Type of Service: Door to Port  
Estimated Volume: 20 FT – Flat.  
Move Day: Thursday  
Move Date: 02/14/2019

**Service Quote**

|                 |                                        |           |
|-----------------|----------------------------------------|-----------|
| Insurance:      | Total Loss Coverage Insurance          | \$0.00    |
|                 | For \$5,000 - Free.                    |           |
| Others:         | Lcl Service Charges For 200 Cubic Feet | \$2500.00 |
| Others:         | Documentation Fee                      | \$95.00   |
| Total Estimate: |                                        | \$2595.00 |

**Understanding Your Service****Line Haul Charges: Based on 20 FT Container.**

The price Includes trucking the container from the port to your home at origin and back to the port, fuel and mileage, custom clearance at origin for the households, terminal handling at origin, ocean freight.

Please be advised that the container is reserved for 2 hours of loading, any additional hour will be \$120.00.

**Insurance: FREE "Total loss" Insurance up to \$5,000.00.**

The Insurance is subject to receiving the Insurance forms 3-4 days prior to the pickup, and it is subject to the Insurance company terms and conditions. (\$300 deductible).

Additional Insurance is available upon request, charge of 3% of declared value for full coverage, and 2% of declared value for total loss, and will require \$75 processing fee.

**Documentation fee:**

The price includes preparing all export documents for shipping house hold goods and, AES filing and bill of lading.

**The price does not Includes:**

Loading service, Delivery service, custom clearance at destination, , storage at origin, Terminal Handling charges at destination, local port fees and taxes at destination, custom examination and scanning, roll over fees, storage at destination, demurrage, fumigations, and vehicle shipping.

**Payment Terms:**

- 15% deposit is required upon signing the service agreement by credit card ( Visa or MasterCard Only).
- The remaining balance is due 7-10 days after receiving the final Invoice before shipment will leave the USA, by personal check, certified check, wire transfer, cashier check.

**\*By signing this page I agree that this contract is supplemental to BOL and tariff which are publicly available at Federal Maritime Commission by section 19 of the Shipping Act of 1984, Part 515 of Title 46 of the Code of the Federal Regulations.**

\_\_\_\_\_  
Customer Name

\_\_\_\_\_  
Customer Signature

\_\_\_\_\_  
Date

## Exhibit 2

**Michelle Franklin**

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**Subject:**

FW: The Right Move relocation estimate # 220847

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**From:** muhammad.rana <muhammad.rana@rocketmail.com>

**Sent:** Wednesday, February 6, 2019 12:46 PM

**To:** Michelle Franklin <mfranklin@therightmove4u.com>

**Subject:** RE: The Right Move relocation estimate # 220847

Hi Michelle,

I accept the terms and conditions, full payment in the amount of \$2595.00 will be paid before February 14, 2019.

Thank you,  
Muhammad Rana

Exhibit 3

STRICTLY PROHIBITED. IF YOU HAVE RECEIVED THIS COMMUNICATION IN ERROR, PLEASE NOTIFY US IMMEDIATELY BY REPLY E-MAIL OR BY CALLING 347-368-6520. THANK YOU.

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**From:** Muhammad Rana <[muhammad.rana@rocketmail.com](mailto:muhammad.rana@rocketmail.com)>

**Sent:** Tuesday, April 2, 2019 11:16 PM

**To:** Michelle Franklin <[mfranklin@therightmove4u.com](mailto:mfranklin@therightmove4u.com)>

**Subject:** Re: House Goods Descriptive Inventory

Hi Michelle,

Sorry to hear about your company troubles. I hope things work out for the best.

My agent wants to know if I have any "free time"? How many days can they keep my cargo without charge?

Thanks,  
Muhammad

Exhibit 4

**Michelle Franklin**

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**Subject:**

FW: House Goods Descriptive Inventory

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**From:** Muhammad Rana <muhammad.rana@rocketmail.com>

**Sent:** Friday, April 5, 2019 3:44 AM

**To:** Michelle Franklin <mfranklin@therightmove4u.com>

**Subject:** Re: House Goods Descriptive Inventory

Hi Michelle,

Maersk is asking for payment of delivery and shipping. I already paid you for that, can you please check with them.

Thank you,  
Muhammad

Sent from Yahoo Mail for iPhone

On Thursday, April 4, 2019, 7:05 PM, Muhammad Rana <muhammad.rana@rocketmail.com> wrote:

Thank you!!!

Sent from Yahoo Mail for iPhone

On Thursday, April 4, 2019, 6:15 PM, Michelle Franklin <mfranklin@therightmove4u.com> wrote:

Please find attached,

Hope this works 😊

Thank you and best regards,

Michelle Franklin – Relocation consultant

The Right Move, Inc

150 Motor Parkway suite 401

**Michelle Franklin**

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**Subject:**

FW: Payment

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**From:** Michelle Franklin

**Sent:** Tuesday, April 9, 2019 9:37 AM

**To:** Muhammad Rana <muhammad.rana@rocketmail.com>

**Subject:** RE: Payment

The Invoice and payment amount I made was \$1025

That's what they needs to pay to Troy

On Friday you said you will pay it directly , to avoid these additional costs.

I will keep following up with them and make sure they pay , but it may take another day , and in the meantime you are paying additional fees.

I paid these fees a day after you submitted your payment to me, just so you know !

Thank you and best regards,

Michelle Franklin – Relocation consultant

The Right Move, Inc

150 Motor Parkway suite 401

Hauppauge, NY 11788

Direct # 347-368-6520

Fax# 631-439-6801

FMC Licensed #023229N



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# Exhibit 6

**Michelle Franklin**

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**Subject:**

FW: Payment

----- Original message-----

**From:** Muhammad Rana

**Date:** Tue, Apr 9, 2019 12:51 PM

**To:** Michelle Franklin;

**Cc:**

**Subject:**Re: Payment

Okay Michelle, I will pay directly tomorrow and you can send me the refund by Friday. CP world will charge me 156,750 rupees in unpaid dues, this comes out to 1,112.00 US dollars. This excludes port costs and other delivery costs. I will send you the receipt.

You can mail a cashier's check in my name to my brother's address in Connecticut.

Thanks,

Muhammad Rana